Annex G

Format for providing public comments to DIFCA on Consultation paper No. 4 of 2023
Proposed Digital Assets Law and Related DIFC Legislation

Note 1: DIFCA reserves the right to publish, including on its website, any comments you provide. However, if you wish to remain anonymous, you must expressly request at the time of making comments that this should be the case.

Note 2: The column titled 'comments on proposed policy' relates to the policy explained in the Consultation Paper ("CP"). The column titled 'comments on proposed legislation' refers to the draft legislation reflecting the proposed policy.

Note 3: It is possible that you may not have any comments, either on the proposed policy or legislation, or may have comments on one and not the other. You may leave a blank column if you either agree to the proposed position, or you have no concerns relating it.

Note 4: If there are any ambiguities relating to the proposed policy or legislation, you may raise those in your comments.

Name of individual / entity providing comments:	

No	Comments on proposed policy	Comments on proposed legislation
Definition of a Digital Asset		
Q1: Do you agree with our definition of a Digital Asset in Article 8 of the DAL? If not, how can it be improved?		
Property characterisation		
Q2: Do you have any concerns in relation to Article 9 of the DAL? If so, how can it be improved?		

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No	Comments on proposed policy	Comments on proposed legislation
Original acquisition of title		
Q3: Do you agree with our general approach to Article 11 of the DAL, in relation to control being the root of title? If not, what changes do you suggest?		
Q4: Do you have any concerns about Article 11? If so, how could it be improved?		
Transfer of title		
Q5: Do you agree with the general rule that title is transferred by a change of control plus an intention to transfer title? If not, what should the general rule be?		
Q6: Do you agree with the threshold we propose in relation to what constitutes a change of control for the purposes of the transfer of title rule? If not what should the threshold be?		
Q7: Do you agree with the Article 13 exception to the 'change of control' rule for transfers of title? If not, which of the proposed exceptions should be deleted, or what additional exceptions are desirable?		
Interference/impairment of use		

Any personal data provided by you will be used, recorded and processed by us in accordance with the relevant statutory basis including the Data Protection Law 2020, We do not disclose any information you provide to any third parties or other government authorities except where (i) such disclosures are necessary to fulfill our obligations to you in which case we will require such third parties to agree to treat it in accordance with thus policy; (ii) required by applicable laws, courts orders, or government regulations (for example to prevent or detect crime); (iii)you give us permission to do so, please see the Data Protection Law 2020 for a full account of your rights relating to data protection.

No	Comments on proposed policy	Comments on proposed legislation
Q8: Do you agree with the conduct element we propose in respect of the Article 14 impairment regime? If not, what should it be?		
Q9: Do you agree with the mental requirement we propose in respect of the Article 14 impairment regime? If not, how should it be formulated?		
Q10: Do you agree with the proposed scope of defences in respect of the Article 14 impairment regime? If not, what defences should be available?		
Recovery of control of a Digital Asset		
Q11: Do you agree with the existence and scope of the Article 15 'recovery of control' remedy? If not, what should be its scope?		
Bona fide purchase		
Q12: Do you agree with the scope and the knowledge thresholds of the bona fide purchase rules we have proposed? If not, what changes should be made?		
Contract Law amendments		

No	Comments on proposed policy	Comments on proposed legislation
Q13: Should leave open what "commercial standards of fair dealing" means for the purpose of Article 37(2)(e) of the Contract Law, or should we have explicit guidelines in Article 37 as to what constitutes "commercial standards of fair dealing"? if so what should those guidelines provide?		
Q14: Do you agree with the 'reasonable coder' approach that we have introduced in relation to the interpretation of coded terms in a contract? If not, what approach is appropriate?		
Q15: Do you agree with the amendments we have made to Articles 49-52 of the Contract Law? If not, what amendments are appropriate?		
Q16: Do you agree with the definitions we have introduced in relation to the terms in Articles 49-52? If not, in what respects should they be changed?		
Q17: Do you agree with our definitions of 'Money', 'Currency', 'Credit balance', 'Monetary obligation' and 'Sum'? If not, what modifications are required?		
Law of Damages and Remedies		

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No	Comments on proposed policy	Comments on proposed legislation
Q18: Do you have any concerns in relation to our proposed amendments to the Law of Damages and Remedies? If so, how should the proposal be modified?		
Law of Obligations		
Q19: Do you have any concerns in relation to our proposed amendments to the Law of Obligations? If so, how should the proposal be modified?		
ITCUT Law		
Q20: Do you have any concerns regarding our proposed amendments to the ITCUT Law? If so, what modifications are desirable?		
Q21: Are there any other types of Digital Assets that do not currently benefit from the protective provisions of Part 3 of the ITCUT Law, but should do so?		
Trust Law and Foundations Law		
Q22: Do you agree with our amendment in relation to 'identifying characteristic' in Article 45(1)(b) of the Trust Law? If not, how should the issue be addressed?		
Q23: Do you have any concerns in relation to our proposed amendments to the Trust Law and the Foundations Law? If so, how should these be modified?		

No	Comments on proposed policy	Comments on proposed legislation
Insolvency Law and Insolvency Regulations		
Q24: Do you agree that a contractual claim for a Digital Asset that is money should be converted into a US dollar debt on the date of liquidation under Reg 6.26 of the Insolvency Regulations?		
Q25: Do you agree with our pro rata shortfall allocation rule in respect of unallocated commingled holdings?		
Q26: Do you have any concerns regarding our proposed amendments to the Insolvency Regulations and the Insolvency Law? If so, what modifications are required?		
Miscellaneous and General Comments		

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